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**DEEPFAKES BEFORE COURTS: THE LEGAL AND EVIDENTIARY CRISIS OF SYNTHETIC MEDIA****Introduction**

Artificial Intelligence (AI) has reached a stage where it can create content that looks, sounds, and feels real. Using advanced deep learning techniques, modern AI systems analyse vast amounts of data and generate highly realistic images, videos, and audio. One of the most concerning by-products of this technology is the rise of Deepfake.

A deepfake refers to audio, video, image or multimedia content that is synthetically created or manipulated using Artificial Intelligence techniques, particularly deep learning algorithms in such a manner that it convincingly imitates a real person's appearance, voice, or actions. Unlike traditional editing or manipulation, deepfakes are capable of generating content that never existed at all, while appearing authentic to the human eye and ear. Deepfake content has already been used globally and increasingly in India for impersonation, financial fraud, extortion, political misinformation, reputational harm, and harassment.

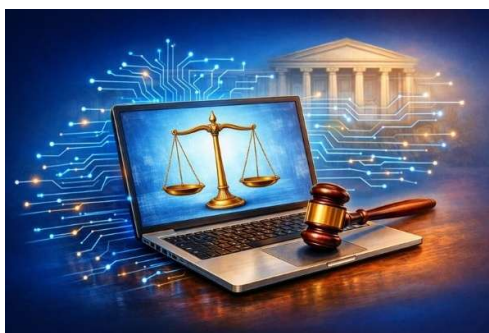
**India's legal response to deepfakes and synthetic media**

India does not yet have a standalone statute regulating deepfakes or synthetic media. Instead, the legal response is fragmented across cyber, criminal, data protection, intermediary, and evidentiary laws, which address the harms

caused by deepfake misuse rather than regulating the technology itself.

The current Indian laws such as Information Technology Act, 2000 contains specific provisions like Sections 66C (identity theft), 66D (cheating by personation), 66E (violation of privacy), and Sections 67 to 67B (obscene and sexually explicit content) which are commonly invoked to deal with misuse of deepfake content. The Bharatiya Nyaya Sanhita, 2023 further criminalises conduct associated with deepfakes under Sections 356 (defamation), 351 (criminal intimidation), and 77 (non-consensual private or intimate imagery). In addition, the Digital Personal Data Protection Act, 2023 indirectly regulates deepfakes by restricting unauthorised processing of personal data such as facial images, voice samples and biometric identifiers. A significant regulatory shift occurred with the amendment to the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, effective from 15 November 2025, which for the first time defined “*synthetically generated information*”, mandated labelling of AI-generated content, and imposed proactive takedown obligations on intermediaries, with non-compliance potentially resulting in loss of safe-harbour protection under Section 79 of the IT Act, though concerns remain regarding uneven enforcement and the absence of uniform technical standards.

### **The evidentiary challenge posed by deepfakes**



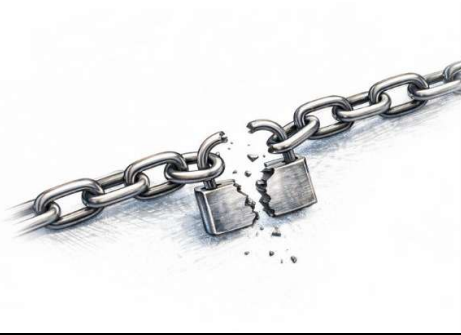
Courts have traditionally relied on visual and audio material as some of the most persuasive forms of evidence. A photograph, a video recording, or a voice clip has often been treated as a reliable representation of reality, subject of course to proof of source and admissibility. However, the rapid rise of artificial intelligence has fundamentally disrupted this assumption.

The central question that therefore arises is not merely whether deepfakes are harmful, but how Courts should deal with them when they are produced as evidence. Can a court rely on what it sees and hears? What standards should apply to determine authenticity? Who bears the burden of proving that a digital record is genuine or fabricated? How should existing evidentiary rules be applied to technology that did not exist when those rules were framed?

In recent years, Indian Courts have increasingly encountered disputes involving deepfake content, particularly in cases relating to fraud, extortion, impersonation and violations of privacy. In 2022, Delhi Court case involved a deepfake used to manipulate surveillance footage which raised chain-of-custody and digital manipulation, The Hon’ble Supreme Court in *Anvar P.V. v. P.K. Basheer* (2014), a landmark judgment, highlighted procedural rigidity in addressing importance and compliance of Section 65B of Evidence Act, 1872.

Indian courts have encountered significant difficulties with deepfake evidence due to its hyper-realistic manipulation capabilities, which undermine the reliability of electronic records and challenge traditional authentication standards under the *Bharatiya Sakshya Adhiniyam*, 2023.

## Admissibility of deepfake evidence



The admissibility of deepfake content presents a distinct challenge within India's evidentiary framework. The Bharatiya Sakshya Adhiniyam, 2023 (BSA) governs electronic evidence through Sections 62 and 63, largely retaining the earlier certification-based regime. These provisions presume authenticity once procedural requirements such as proof of device functionality and proper certification are satisfied. Deepfakes, however, undermine this presumption by enabling fabricated content to formally comply with admissibility standards while remaining substantively false.

Although BSA introduces safeguards such as expert certification and hash value verification, these measures primarily detect tampering and do not establish whether the content itself is genuine. The absence of statutory standards for identifying AI-generated manipulation creates procedural uncertainty. Deepfakes also give rise to the "liar's dividend," whereby accused persons deny genuine electronic evidence by alleging AI fabrication, thereby eroding evidentiary certainty. Weak chain-of-custody practices, limited forensic infrastructure, and scarcity of notified examiners under Section 79A of the IT Act further compound these challenges.



The Delhi High Court in *Ankur Warikoo v. John Doe 2025 [SCC OnLine Del 3727]* grappled with AI-generated misinformation, granted injunctions but stressed the need for expert forensics amid admissibility uncertainties. This shows the courts' reactive struggles, prompting calls for legislative reforms and judicial training.

The evidentiary framework, though procedurally robust, is substantively vulnerable to sophisticated synthetic media. Recognising this gap, the Central Government has informed the Delhi High Court in *Rajat Sharma v. Union of India 2024 [SCC OnLine Del 9748]* that a committee has been constituted to examine a dedicated statutory framework for deepfakes. Until comprehensive legislation is enacted, heightened judicial vigilance, professional training, and cautious reliance on expert-verified digital evidence remain essential to preserving the integrity of adjudicatory processes in the digital age.

## Global perspectives



Given the global nature of the internet and the ease with which deepfake content can spread, governments worldwide have started considering or enacting legislation to curb the misuse of this technology. Currently, regulatory approaches to deepfake technology vary significantly across the world. Some of the major frameworks formed across different Countries are as under:

#### **European Union:**

- The European Union's Code of Practice on Disinformation requires tech companies to counter deep fakes and fake accounts within six months of signing up to the Code. If found non-compliant, tech companies can face fines up to 6% of their annual global turnover.
- The European Union has passed the world's first comprehensive laws to regulate the use of artificial intelligence. The Artificial Intelligence Act (AI Act) aims to introduce a common regulatory, legal framework for artificial intelligence and aims to ensure that AI systems placed on the European market and used in the EU are safe and respect fundamental rights and EU values.

#### **United States**

- DEEPFAKES Accountability Act: At the federal level, Congress has introduced bills such as Deepfakes Accountability Act that would impose transparency obligations and victim remedies.
- The "Take It Down" Act: Push for prompt platform removal of non-consensual intimate imagery.
- Simultaneously, many U.S. states have enacted or proposed targeted statutes criminalising creation/distribution of non-consensual deepfake pornography and imposing civil liability for deceptive election-related media. Enforcement is a mix of criminal prosecutions, civil suits and platform notice-and-takedown processes.

#### **China:**

- China has issued a broad law on deepfakes from the Cyberspace Administration of China (CAC) requiring labeling of content created by AI. It prohibits creating illegal content through deepfakes and requires user identity authentication for services utilizing deepfakes.
- Chinese law prefers government control and social supervision, putting regulation of deepfakes in the national security framework. It emphasizes censorship and control rather than the protection of human rights. Technical standards mandate watermarking and detection features in deepfake technology.

#### **Suggestions**

- i. Adding watermarks to AI-generated videos is essential for effective detection and attribution. Watermarks reveal the content's origin and ownership, serving various purposes. They aid in attribution by clarifying the content's creator or source, especially when shared in different contexts.
- ii. Enactment of a dedicated "Deepfake Regulation Act" which criminalizes malicious creation and distribution of deepfakes.
- iii. Mandatory training for police, prosecutors, and judges on AI, forensic validation, and cyberlaw. Add modules on artificial intelligence and digital evidence to the National Judicial Academy's curriculum. Continue to train people in blockchain evidence chains, metadata analysis, and GAN detection techniques.
- iv. Create AI Forensic Divisions in each state-level laboratory and Central Forensic Science Laboratories (CFSLS). Encourage partnerships for technology exchange with National

- Law University (NLU) research centers, IIITs, and IITs.
- v. Public Awareness Campaigns: Run national-level awareness drives to educate citizens about the existence and dangers of deepfakes.
  - vi. Digital Evidence Certification Authority: Establish a national authority under the Ministry of Law or Ministry of Electronics & IT to certify the authenticity of digital submissions.

### **Key takeaway**

*“The rise of deepfakes exposes critical gaps in evidentiary and regulatory frameworks, underscoring the need for coordinated judicial, forensic, and legislative responses.”*

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